IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No. 501
CP (CAA) No. 15/230/232/ND/2020

IN THE MATTER OF:
AKSS Engineers Pvt. Ltd. and Sampark Laminators Pvt. Ltd. ... **Applicant/Petitioner**

SECTION
U/s 230-232

Order delivered on 04.03.2022

CORAM:
SHRI ABNI RANJAN KUMAR SINHA,
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Arun Saxena Adv.
For the OL : Ms. Hemlata Rawat
For the RD : Mr. Shankari Mishra
Income Tax Department : Ms. Easha Kadian, Sanjay Kumar, Standing Counsels along with Himanshu, Adv.

ORDER

Heard, the Ld. Counsel appearing for the petitioner-RD as well as Income Tax Department. Ld. Counsel appearing for the RD submits on 03.03.2022, the clarification letter was issued by the Department to the Petitioner and the reply has not received, as yet. Whereas, the Ld. Counsel appearing for the petitioner submits that the petitioner has not received any clarification letter, therefore, RD's Counsel is directed to share the clarification letter with the Petitioner's Counsel on his E-mail ID by tomorrow. The Petitioner's Counsel is requested to share his E-mail ID with RD's Counsel today.

Ld. Counsel appearing for the Income Tax Department submits that he has not received the report from the Assessment Officer and that is, the reason report could not be filed. However, he further submits that if the applicant has enclosed the Income Tax Returns for all the Financial Years/Assessment Years, then the order may be passed on the basis of that document. List on **22.03.2022**.

Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J

Md Saddam